

Sexual Exploitation and Abuse Prevention Code of Conduct

No code of conduct or policy can anticipate every situation that may arise. Accordingly, this code is intended to serve as a source of guiding principles and to complement already established policies, not to act as an exhaustive list. Individuals who work under awards that have their own codes of conduct on this subject are expected to abide by those codes as well. Partners of the Americas (POA) reserves the right to make all decisions on a case-by-case basis.

Sexual Exploitation & Abuse Prevention

POA is committed to providing a safe and supportive working environment, free from sexual abuse, exploitation, and harassment for all program beneficiaries (hereafter referred to as “Participants”) who attend or participate in programs, activities, and/or events sponsored by the organization. Sexual exploitation and abuse¹ (SEA) of any sort – verbal or physical – is prohibited and will not be tolerated by POA. Moreover, POA will not tolerate acts of SEA by any employee, non-employee, members of the Board of Directors, members of a partner organization with a contractual relationship with POA, or members of the POA network, including but not limited to consultants, volunteers, and Chapter members implementing programs on behalf of POA (hereafter referred to as a “POA Affiliate”). This policy applies to all POA Affiliates interacting with Participants.

POA recognizes the unequal power dynamic that may exist between POA Affiliates and Participants, and therefore the potential for exploitation in its work. POA further recognizes that exploitation undermines the credibility of its work and severely harms victims of these exploitative acts and their families and communities. No POA Affiliate shall threaten or insinuate, either explicitly or implicitly, that any person’s refusal to submit to sexual advances will adversely affect them.

POA Affiliates will respond to Participants with respect, consideration, and equal treatment, regardless of sex, gender, race, religion, sexual orientation, culture, ability, or socio- economic status. POA Affiliates must conduct themselves in a professional manner as representatives of the organization, consistent with the standards for U.N. employees in Section 3 of the U.N. Secretary General’s Bulletin-Special Measures for Protection from Sexual Exploitation and Sexual Abuse ([ST/SGB/2003/13](#)). Thus, as a condition of their employment or engagement, POA Affiliates must acknowledge and agree to the following core principles which are consistent with Section 3 of the U.N. Secretary-General’s Bulletin ([ST/SGB/2003/13](#)):

- Sexual exploitation and abuse by a POA Affiliate constitute acts of gross misconduct and are therefore grounds for termination of employment and/or relationship.
- Sexual activity with children (defined according to the Convention on the Rights of the Child as all persons under the age of 18) is prohibited regardless of the age of majority or age of consent locally. Mistaken belief in the age of a child is not a defense.
- Exchange of money, employment, goods, or services for sex, including sexual favors or other forms of humiliating, degrading, or exploitative behavior, is prohibited. This includes exchange of assistance that is due to beneficiaries.
- Sexual relationships between POA Affiliates and Participants are prohibited since they are based on inherently unequal power dynamics. Such relationships undermine the credibility and integrity of humanitarian aid work.
- Where a POA Affiliate develops concerns or suspicions regarding sexual abuse or exploitation by another POA Affiliate, they must report such concerns via established organizational reporting mechanisms.

¹ Per the UN Secretary-General’s Bulletin ([ST/SGB/2003/13](#)), sexual exploitation is defined as “any actual or attempted abuse of a position of vulnerability, differential power, or trust, for sexual purposes, including, but not limited to, profiting monetarily, socially or politically from the sexual exploitation of another.” Sexual abuse is defined as “the actual or threatened physical intrusion of a sexual nature, whether by force or under unequal or coercive conditions.”

- POA Affiliates are obliged to create and maintain an environment that prevents sexual exploitation and abuse and promotes the implementation of this code of conduct. Managers at all levels have a particular responsibility to support and develop systems that maintain this environment.

SEA Complaint Procedure

If you believe you have been subjected to SEA or you are aware of any such conduct, the incident must be reported immediately. POA Affiliates must report all incidents or suspicions of SEA immediately through one of the means listed below.

1. Contact the immediate supervisor, program, or country director of the alleged offender.
2. Contact POA's external and confidential hotline, Foster Thomas, at +1 (443)-951-4951. Foster Thomas is an outside party who will relay any concerns to the Ethics Committee of the Board. Reports may be made anonymously.
3. Contact POA's internal HR department at poahr@partners.net.

All complaints will be promptly and thoroughly investigated, and each complaint will be handled confidentially. Complaints will be investigated impartially and if found to be truthful, POA will take immediate corrective action. Anyone found to have engaged in SEA will be subject to appropriate disciplinary action up to and including termination.

Retaliation for SEA Complaint

POA prohibits any retaliation against anyone who legitimately exercises their rights under this policy, files a complaint, or participates/cooperates in an investigation. There is to be no interference, coercion, discrimination, reprisal, or retaliation against any person for making a valid and truthful complaint or report of a violation. Anyone who believes they are being discriminated against as a result of legitimately filing a complaint or truthfully participating in an investigation should immediately file a report through one of the ways mentioned above.

Anyone who becomes aware of possible harassment or retaliation must immediately file a report so that the organization can investigate in a timely and confidential manner. POA will take action against anyone, whether they are the subject of a complaint or not, who seek or carry out retaliatory action against complainants, witnesses, or victims. Employees may be subject to disciplinary action, up to and including termination of employment. Others who work with POA may have their relationship with POA terminated.

Please refer to the [SEA Prevention Policy](#) for further information and guidance.

I have read and agree to this policy. By signing below, I agree to abide by the above policies. I also agree to attend one of the SEA Prevention trainings/courses listed in the SEA Prevention Policy within 30 days of signing this Code of Conduct and again once annually thereafter.

Signature

Date

Name (Please Print)